

IAS MAINS 2020

VALUE ADDITION

GS - I

GS - II

GS - III

GS - IV

12 QUESTIONS WITH MODEL ANSWERS

MODULE - 4

GS – I ... INDIAN SOCIETY

7

In India, the practices of religion are highly heterogeneous and vary according to the social and cultural contexts and this makes it highly complex for the courts to draw a dividing line between constitutional morality and religious practices. Elaborate the statement with specific examples. (250 Words)

8

Mark Twain said, “India is the country of cradle of the human race, birthplace of human speech, mother of history, grandmother of legend, great grandmother of traditions.” What do you infer from this? (150 Words)

9

The evolution of Indian society from “poverty-ridden” towards “cautious aspiring middle class” inhibits “risk-taking and innovation”. Elaborate the statement with your viewpoint. (150 Words)

GS – II ... CONSTITUTION AND POLITY

4

Examine how far the executive control over tribunals is detrimental to the judicial independence. (150 Words)

5

Several “secular traits” of the Indian Constitution were reiterated by the Constitution Bench in recent Ayodhya Verdict. Enunciate these secular traits put forward through the judgment. (150 Words)

6

Supreme Court recently observed: “Presiding officers of the Legislatures should not replace Constitutional Morality with Political Morality”. What could have been the rationale for such comment? What steps do you suggest to uphold Constitutional Morality? (250 Words)

GS – III ... ECONOMIC DEVELOPMENT

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Basic traits of energy justice for the masses of the Nation are “affordability, accessibility, sustainability and supply security”. Examine how far the Government policies are aligned in this direction? (250 Words)

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India imports crude oil and exports refined products. Similarly, India imports raw gems and exports finished products of Gems & Jewellery. How was the global competitiveness achieved in these sectors? Why this success could not be emulated in other sectors to achieve global competitiveness? (250 Words)

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North-Eastern States have huge potential for growth, but they are far from achieving that potential. Examine the underlying reasons. (150 words)

GS – IV ... ETHICS & INTEGRITY

- 10 Explain the reasons for politics not being a profession of choice for youngsters in India. (150 words)
- 11 Discuss the principles of Jain philosophy and its relevance to present society. (150 words)
- 12 Distinguish among Attitude, Values and Beliefs. Discuss various factors that influence attitudes. (250 Words)

7 / IS
GS - I

In India, the practices of religion are highly heterogeneous and vary according to the social and cultural contexts and this makes it highly complex for the courts to draw a dividing line between constitutional morality and religious practices. Elaborate the statement with specific examples. (250 Words)

Religious practices form the basis for social morality. Recent Supreme Court judgements that upheld constitutional morality over social morality resulted in questioning the contentious limits of judicial intervention in religious practices.

RECENT EXAMPLES

Issues of dividing line between constitutional morality and religious practices.

1. SABARIMALA JUDGEMENT**CONSTITUTIONAL MORALITY**

- Allows women of menstrual age into temple.
- Upholds right to equality and right against untouchability.

RELIGIOUS PRACTICES

- Goes against Naistik Brahmacharya trait of the deity.
- Belief and faith are the basis than logic and rationality.

2. TRIPLE TALAQ JUDGEMENT**CONSTITUTIONAL MORALITY**

- Instant triple talaq is unconstitutional.
- Upholds right to equality.

RELIGIOUS PRACTICES

- Other form of triple talaq still prevails.



OTHER EXAMPLES

1. Naked procession of Sadhus in Kumbh Mela.
2. Entry of women into mosques like Haji Ali and Parsi worship places – Right to Worship.
3. Ananda Margis' (a religious denomination) right to dance the Tandava on the streets of Kolkata.
4. Sallekhana (starving to death) practiced by Jains and court orders against the practice.

This religious diversity makes distinction between constitutional morality and religious practices highly complex.

CONCLUSION

Courts must respect the integrity of religious groups except where certain practices lead to an individual's exclusion and breach of human rights. Law as an agent of change is necessary for a progressive society but should not be at the stake of its cultural diversity.

Mark Twain said, "India is the country of cradle of the human race, birthplace of human speech, mother of history, grandmother of legend, great grandmother of traditions." What do you infer from this? (150 Words)

It implies the advancements in early Indian civilisation and multi-culturalism that is inherent to Indian civilisation. The accommodative nature of the civilization resulted in India being great grandmother of traditions.

CRADLE OF HUMAN RACE AND MOTHER OF HISTORY

- Witnessed early urbanized human civilization i.e., Harappa.
- High social position to women in decision making.
- Huge literature of Vedas and Upanishads describing civilized life style.

MULTI CULTURALISM – GRANDMOTHER OF TRADITIONS, GRAND MOTHER OF LEGEND

- Accommodating all cultures that entered India.
- Inclusion of Syrian Christians, Muslims, Parsis, Hindus and many other tribal communities.
- Coexistence of diverse cultural religious communities with due respect to each other's life styles.
- Geographical diversity resulting in distinct traditions, food habits, dressing and other life styles.
- Legends of Rama and Krishna are popular not only as stories but also as sources of ethics, morals and values.

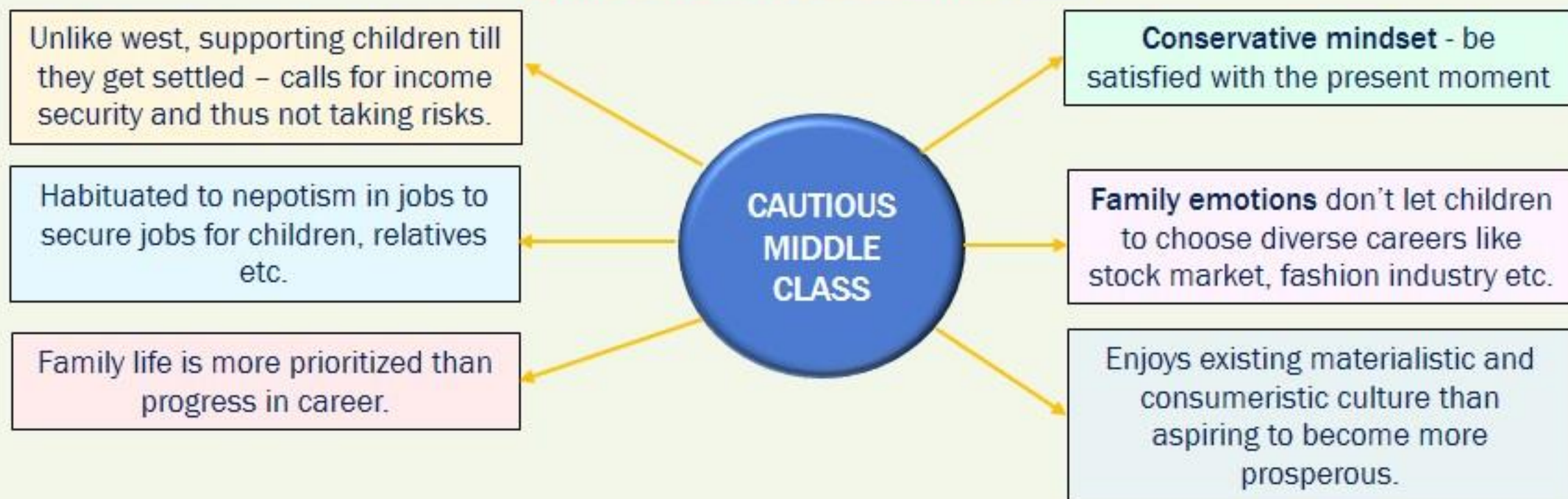
WAY FORWARD

Our inherent multiculturalism has been under strain to some extent due to various reasons. There is a need to revive multiculturalism with collaborated efforts of state and civil society.

The evolution of Indian society from “poverty-ridden” towards “cautious aspiring middle class” inhibits “risk-taking and innovation”. Elaborate the statement with your viewpoint. (150 Words)

Risk training and innovation are necessary for a society to come out of middle-income trap and sustain the progress. But the cautious aspiring middle class in India are averse to these elements.

REASONS FOR AVERSE NATURE



BUT THEY ARE ACTIVE AT TIMES OF CRISIS

- Participation in movement against corruption.
- Protest against Nirbhaya is largely by the middle class.
- Recent Aarey colony protests in Mumbai to protect environment.

IN A NUTSHELL

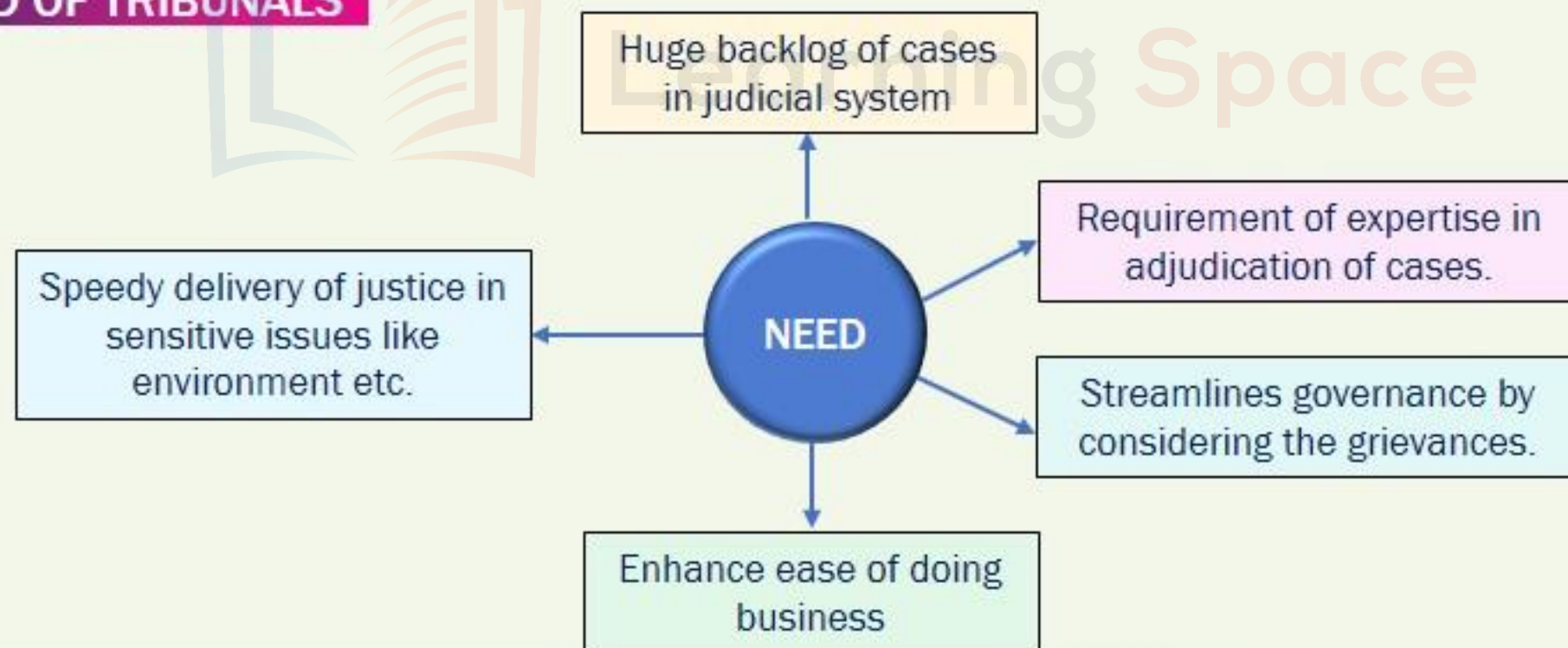
Indian middle class are not averse to take risks at times of crisis for collective good of the society. But, the elements of risk taking and innovation have to be inculcated in their everyday lives for better progress of the nation.

Learning Space

Examine how far the executive control over tribunals is detrimental to the judicial independence. (150 Words)

Tribunals don't enjoy the same constitutional protection as the judicial system as they are established by the Legislature. But increasing tribunalization is encroaching the domain of judicial independence.

NEED OF TRIBUNALS



EXECUTIVE CONTROL OVER TRIBUNALS IS DETERMINENTAL TO JUDICIAL INDEPENDENCE

- Tribunals replacing High Courts for disputes under Companies Act, Competition Act, IBC etc.
- Persons aggrieved by certain appellate tribunals can directly appeal to Supreme Court bypassing the High courts.
- Institutional investment to protect independence of high courts is absent for tribunals.
- Tribunals often own allegiance to parent ministries.
- Conferring direct right to appeal to Supreme Court from tribunals changed Supreme Court from Constitutional Court to appellate Court.
- High Court judges are stripped off the experience and insights that they carry with them to the Supreme Court.

WAY AHEAD

Tribunals are integral part of justice delivery and should go together with existing judicial system than threatening judicial independence. Giving way to Parliamentary committee review and inclusive dialogue can enable complementary roles to tribunals without conflict with judiciary.

5 / C&P
GS - II

Several “secular traits” of the Indian Constitution were reiterated by the Constitution Bench in recent Ayodhya Verdict. Enunciate these secular traits put forward through the judgment. (150 Words)

Indian secular traits include neither promotion nor demotion of any religion by state. But principled state intervention to perfect human rights is allowed. Recent Ayodhya Verdict has reinforced the secular traits.

AYODHYA VERDICT – SECULAR TRAITS:

1. Cannot alter the character of place of worship.
 - Places of worship act, 1991 is made non-derogable (i.e., can't be taken away or compromised by any amendment).
2. Emphasis on principle of “non-retrogression”.
 - Government may extend protection to places of worship act beyond what the law specifies.
3. Ram Janmabhoomi is not a juristic person.
 - Question of title can't be reduced to a question of community's faith.
4. Desecration is against the rule of law and hence restitution is inevitable for historical wrongs.
5. Strengthening places of worship act rules out repetition of Ayodhya experience at other places.

IN SUMMARY

The secular traits of the judgement should be a model for future adjudication of communal issues in right spirit.



Supreme Court recently observed: “Presiding officers of the Legislatures should not replace Constitutional Morality with Political Morality”. What could have been the rationale for such comment? What steps do you suggest to uphold Constitutional Morality? (250 Words)

Presiding officer of the legislature is constitutionally empowered to interpret constitutional provisions and adjudicate on disqualifications due to defects. This calls for the speaker to be impartial, giving primacy to constitutional morality over political morality.

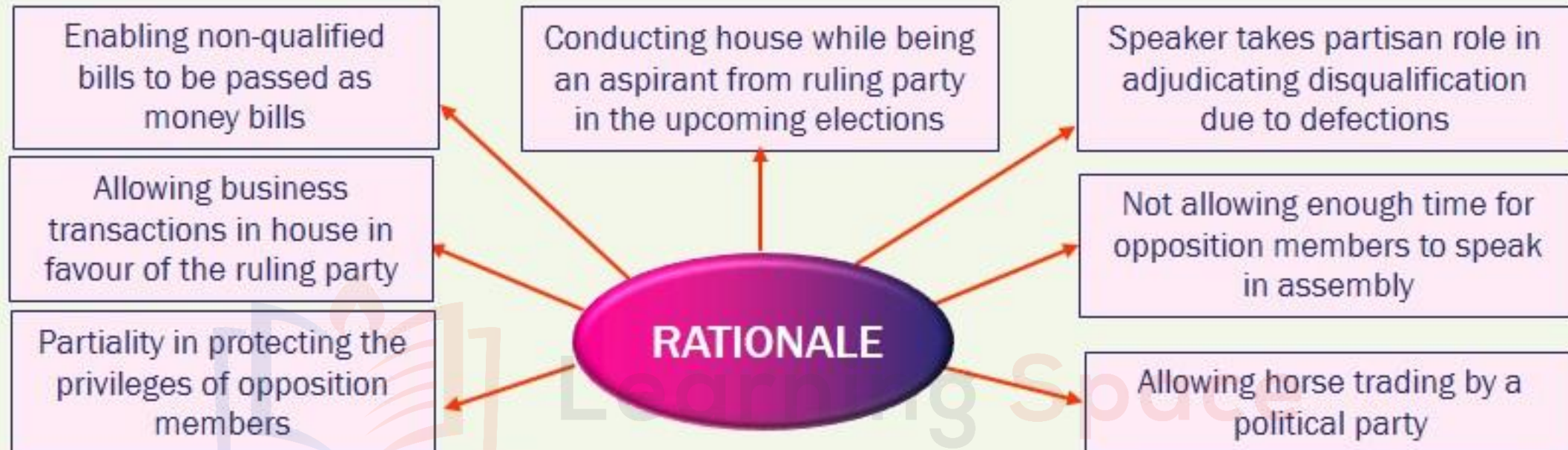
CONSTITUTIONAL MORALITY

- Abiding to the provisions and requirements of constitution not only in letter but also in spirit by being impartial and non-partisan.

POLITICAL MORALITY

- Abiding to the requirements of political party.

RATIONALE FOR SUCH COMMENT



MEASURES TO UPHOLD CONSTITUTIONAL MORALITY

- Speaker to resign from political party once elected as speaker.
- Anti-defection law to be determined by President with inputs from election commission.
- After becoming speaker, political affiliation to be stripped and automatic elevation to the upper house, subsequently after retirement.
- Convention for automatic election from the same constituency without a contest.

CONCLUSION

The efficiency of quality legislation making depends on the conduct of Presiding officer of the house. Abiding to constitutional morality should be the only imperative till one presides the house.



Basic traits of energy justice for the masses of the Nation are “affordability, accessibility, sustainability and supply security”. Examine how far the Government policies are aligned in this direction? (250 Words)

India is an intensive energy dependent economy with 80% of its crude oil requirement being imported. This makes the state vulnerable to external disturbances. Energy justice can be a solution in not only enabling supply security but also affordability, accessibility and sustainability of energy.

RECENT GOVERNMENT POLICIES

SUPPLY SECURITY

- Strategic petroleum reserves in Vishakhapatnam, Padur, Mangalore
- Shifting from NELP to HELP
- Enabling exploration of domestic resources
- Energy diplomacy with oil rich nations like Saudi-Arabia
- Projects like TAPI pipeline for further security
- Shifting to alternate energies like solar, bio-fuels etc.

ACCESSIBILITY

- PM Urja Ganga to provide piped natural gas to eastern India
- PM Ujjwala Yojana to replace solid cooking fuel
- SAUBHAGYA Yojana for 100% electric houses

AFFORDABILITY

- DBT in implementation of Ujjwala Yojana
- Falling prices of alternative energies like solar power, wind power etc.

SUSTAINABILITY

- Greater emphasis on expanding domestic oil reserves and offshore gas basins
- Adoption of ethanol blending programme
- Shift to electric vehicles through FAME-II scheme
- LPG panchayats to create awareness among people

THE WAY FORWARD

1. With growing urbanization and transforming to a \$5 trillion economy, energy justice plays significant role in streamlining this transformation.
2. More investment on research to develop technologies that make energy more affordable and sustainable is needed.
3. Efforts to build up resilience towards natural catastrophes is necessary.



India imports crude oil and exports refined products. Similarly, India imports raw gems and exports finished products of Gems & Jewellery. How was the global competitiveness achieved in these sectors? Why this success could not be emulated in other sectors to achieve global competitiveness? (250 Words)

Processed petroleum products, gems & jewellery are the top Indian exports in 2018 and before. While refined petroleum products account for 15% of India's exports, processed gems & jewellery constitute 12.5%. But None of the other products have a share of more than 6%. This makes India one of the top exporters of refined petroleum and finished gems & jewellery.

REASONS FOR ACHIEVING GLOBAL COMPETITIVENESS IN THESE PRODUCTS

1. REFINED PETROLEUM PRODUCTS:

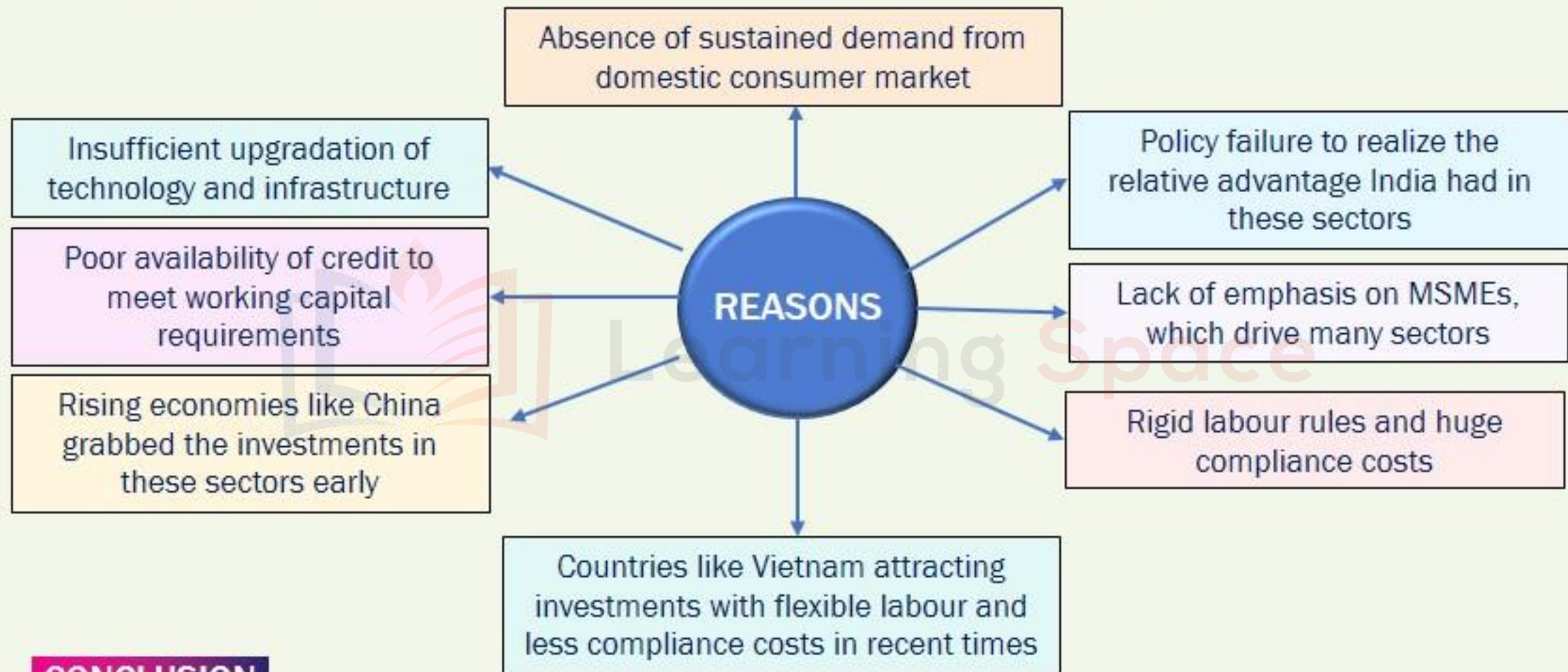
- Promotion of refining industries by government Post-independence.
- Presence of largest refining industry (Jamnagar) and other major refining industries in Visakhapatnam etc. near to ports.
- Presence of India along sea lanes of communication to import crude oil.
- Support from Russia in importing crude at lower prices and establishing refinery industries.
- Sustaining domestic demand for oil due to increasing industrialization since independence.

2. GEMS AND JEWELLERY:

- Prevailing industries for processed diamonds, gems & jewellery since pre-independence at places like Surat.
- Availability of low cost and highly skilled traditional craftsmen.
- Gems & jewellery as status symbol sustained their domestic demand.
- Support of government by allowing 100% FDI under automatic route in recent times.



REASONS FOR THE SUCCESS BEING NOT EMULATED IN OTHER SECTORS



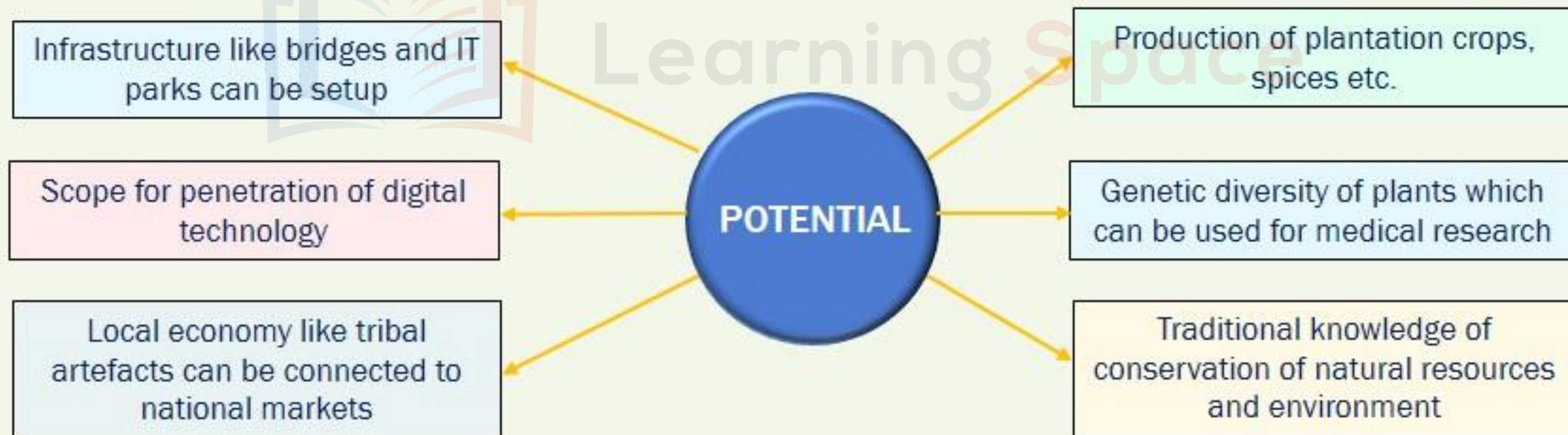
CONCLUSION

Past failures to emulate the success in other sectors has now resulted in India exiting RCEP. This calls for the need of sector specific policies that handhold these sectors till they become self-reliant and realize their inherent potential.

North-Eastern States have huge potential for growth, but they are far from achieving that potential. Examine the underlying reasons. (150 words)

North-eastern states are endowed with rich bio-diversity, hydropower potential, oil, gas and other mineral resources.

POTENTIAL OF NORTH-EASTERN STATES TO BOOST ECONOMY



REASONS THAT INHIBIT THIS POTENTIAL

- Undulated geography of valleys and mountains
- High rate of insurgency because of various fringe elements
- Lack of security because of sharing international borders
- Rigid local cultures and traditions against modernity (failure to implement PESA Act)
- Presence of Inner Line Permits
- Sense of isolation among local people from mainstream India
- Lack of awareness among people towards the employment opportunities in digital technologies
- Lack of political and bureaucratic will to develop North-east against the odds

THE WAY AHEAD

1. State should enable participatory governance by educating and training local people regarding their rights in a democracy.
2. Community led development is the key for the progress of North-eastern states.

Explain the reasons for politics not being a profession of choice for youngsters in India. (150 words)

The maturity of a political system depends on political attitudes of people and political parties. In India, these are based on sentiments, beliefs and ideologies rather than cognition (analysing performance of political parties).

This is a trait of a regressive political system that disables youngsters to consider it as a profession.

REASONS FOR POLITICS NOT BEING A CHOICE



THE WAY FORWARD

Political attitudes should shift towards cognition as the basis. A mature democracy provides opportunities for everyone based on one's skill to provide better governance. This calls for:

- Access to individuals to participate in politics without money, identity or ideology.
- Enabling transparency in political funding.
- Awareness among people to vote based on cognitions.

Discuss the principles of Jain philosophy and its relevance to present society.
(150 words)

Jain philosophy is based on 3 important principles –

- **Right Knowledge:**
 - ✓ To arrive at conclusion regarding morality and truth through rational thought.
- **Right Faith:**
 - ✓ To put right knowledge into practice.
- **Right Conduct:**
 - ✓ Action part of knowledge. It is of more relevance to present society as it involves 5 major aspects –
 - ❖ **Satyam** – Abstinence from falsehood
 - ❖ **Asteya** – Abstinence from stealing
 - ❖ **Brahmacharya** – Abstinence from sensual pleasures
 - ❖ **Aparigraha** – Abstinence from acquiring wealth

Right knowledge and conduct help in liberating oneself.



RELEVANCE TO PRESENT SOCIETY

- Increasing crime rate because of absence of right conduct.
- Rise in intolerance – absence of Ahimsa
- Corruption in governance – Absence of Aparigraha
- Adversary tax regime – Absence of Asteya

CONCLUSION

The ethical aspects of all religions have to be inculcated strongly in people's minds from the schooling level. Students with strong value system will be the torch bearers as upright future citizens of the nation.

Distinguish among Attitude, Values and Beliefs. Discuss various factors that influence attitudes. (250 Words)

- **Attitudes** are set of opinions, feelings and views of a person towards other. It is a state of mind that determines the behavior.
- **Beliefs** are cognitive component of attitudes. They form the basis of attitude.
E.g.: China (dictatorship) Vs India (democracy). India believed that democracy is best.
- **Values** are extreme and rigid form of beliefs. Strong values have following traits -
 - ✓ Won't accept deviation
 - ✓ Stubborn in attitude
 - ✓ Punish deviants
 - ✓ Can be good or badE.g.:
 - ❖ Gandhi had strong values of truth and non-violence.
 - ❖ Even Terrorists have the value system but with disastrous consequences.



FACTORS THAT INFLUENCE ATTITUDES

- Through association (family, parents, teachers, and friends)
- Through system of rewards and punishments
- From lives of great people and role models

E.g.:

- ✓ Vivekananda – Self esteem
 - ✓ Jawaharlal Nehru – Rationality and Scientific temper
 - ✓ Sardar Vallabhai Patel – Commitment to work
 - From cultural norms (Community life etc.)
 - Exposure to information
- E.g.: Globalization
- ✓ Bad - Materialism, money value
 - ✓ Good - Professionalism and discipline, Women empowerment, and Dignity of labour etc.

WAY AHEAD

- Attitudes, beliefs and values that society imbibes determine the progress of the society.
- Progressive values and awareness about one's own attitude and values is necessary to ensure good governance and healthy society.



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SINCERE THANKS
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